

Example Law Firm

EXAMPLE LAW FIRM

Legal Opinion on Cross-border Data Transfer Compliance

LEGAL-OP-2026-015

致：XX Corp.

出具律师：Jane Doe, Attorney at Law

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I. Background and Engagement

Example Law Firm (hereinafter, the "Firm") is retained by XX Corp. (hereinafter, the "Client") to render a legal opinion on the compliance of the Client's cross-border personal information transfer practices under the laws of the People's Republic of China.¹ This opinion is issued pursuant to the engagement letter dated May 28, 2026 and is based on the regulations and judicial practice in force as of the date hereof.

The Firm has conducted a compliance review of the Client's existing cross-border data transfer procedures, including the Standard Contractual Clauses executed with overseas recipients and the Client's internal data classification records.

II. Applicable Legal Framework

(1) Personal Information Protection Law

Article 38: Where a personal information handler needs to provide personal information to an overseas recipient, it shall meet one of the following conditions: passing a security assessment organized by the national cyberspace administration; obtaining personal information protection certification from a professional institution; or signing a standard contract with the overseas recipient.

Article 40: Critical information infrastructure operators and personal information handlers processing personal information up to the quantity prescribed by the national cyberspace administration shall store personal information collected and generated within the territory of the People's Republic of China.

(2) Relevant Judicial Practice

"The court holds that transferring personal information overseas without a security assessment violates the mandatory provisions of Article 38 of the Personal Information Protection Law, and such transfer lacks a lawful basis." — (2025) Jing 0491 Min Chu 12345

(3) Data Security Law

As a **data handler**, the Client shall comply with Article 21 of the Data Security Law regarding data classification and graded protection.²

III. Risk Assessment and Recommendations

Risk Level	Risk Item	Recommended Action
High	Cross-border transfer without security assessment	File for data export security assessment immediately
Medium	Incomplete cross-border transfer contract terms	Supplement Standard Contractual Clauses (SCC)
Medium	Missing data classification labels	Establish internal data classification system
Low	Insufficient employee data awareness	Conduct data compliance training

IV. Analysis and Key Conclusions

Analysis: Data export security assessment is the most urgent compliance obligation. Under the Measures for Security Assessment of Outbound Data Cross-border Transfer, personal information handlers processing personal information of over 1,000,000 individuals shall declare a data export security assessment when providing personal information overseas.

This is the **key** conclusion reached by the Firm based on existing regulations and judicial practice: the Client should complete the assessment filing within 90 days of the date of this opinion.

V. Opinion and Remediation Plan

In summary, the Client is advised to complete the following three remediation tasks within **90 days**: first, initiate the data export security assessment filing procedure; second, execute standard contractual clauses compliant with the national cyberspace administration standards with all overseas recipients; third, establish a sound data classification and grading management system.

This opinion is issued solely for the Client's internal compliance use and shall not be relied upon by any third party without the Firm's prior written consent.

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